

[doc. web n. 10139433]
Provision of April 10, 2025
Register of provisions
n. 201 of April 10, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi - Acting Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING Prof. Pasquale Stanzione;

PREMISE

1. Introduction.

With a complaint submitted pursuant to Article 77 of the Regulation, Mr. XX, an employee of the Unione Montana Appennino Parma Est (hereinafter, the "Union"), serving at XX, complained - both on his own behalf and as exercising parental responsibility over his minor child - of an alleged violation of the rules on the protection of personal data, concerning the processing of personal data of himself and his child through a surveillance camera.

In particular, the complainant stated that "the pedestrian entrance of [...] the [Local Police Command] is subject to surveillance through the presence of an external camera active 24 hours a day and 7 days a week, whose images are recorded and stored by the Data Controller." In this context, the Union would not have either placed an information sign, containing the first-level information on the processing of personal data, in proximity to the surveillance camera, nor provided the data subjects with a complete second-level information; it would not have drafted a data protection impact assessment (hereinafter, "DPIA"), pursuant to Article 35 of the Regulation, before starting the processing; it would have used said camera, capable of capturing also members of the Local Police Corps in the work context, in violation of Article 4 of Law No. 300 of May 20, 1970; it would have retained the personal data contained in the surveillance images "longer than necessary for the purposes for which they are processed," considering that "with reference to the access [to the premises of the Local Police Command,] made by the complainant [...] on date XX together with his minor child, [...] [the Union] retained the images for a period exceeding 24 hours (the images were viewed on date XX) without any particular needs justifying an extension of the retention)."

2. The investigative activity.

In response to a request for information from the Authority (see note prot. n. XX of XX), the Union, with note of XX (prot. n. XX), declared, in particular, that:

“the surveillance camera in question was installed and put into operation in February 2016”;

“the purpose of the processing pursued [...] within the framework of integrated urban security action is the protection of properties owned or managed by the Administration [...]. [The] legal basis [for the processing is to be traced to] [...] Article 6 paragraph 1 letter e) of the [Regulation] [...]”;

“the camera [...] exclusively captures the access area to the offices and in long range the parking area for vehicles owned and does not record any activities carried out by the workers; since the purpose is within the framework of integrated urban security action for the protection of properties owned or managed by the Administration, it does not fall within the scope of application of Article 4 of Law No. 300/70. For this reason, no agreement has been concluded with the trade unions nor has authorization been requested from the Territorial Labor Inspectorate”;

“based on the current legal provisions, [...] the maximum retention period for data is 7 days [...]”;

a “sign with the first-level information [...] was placed in proximity to the camera in question in September of XX. The extended information on the processing of data is...

to the workplace and finalizzata alla protezione del patrimonio pubblico”;

“l’Unione ha sempre garantito la massima trasparenza nella gestione dei dati personali e ha adottato misure adeguate per informare i dipendenti riguardo al trattamento dei loro dati”;

“l’Unione ha attivato un percorso di formazione per il personale riguardo alla protezione dei dati personali e alla videosorveglianza”;

“l’Unione ha collaborato attivamente con l’Autorità per garantire la conformità alle normative vigenti in materia di protezione dei dati personali”.

In light of the above, the Union requests that the Authority consider the actions taken and the measures implemented to ensure compliance with data protection regulations, and to take into account the good faith efforts made to address the concerns raised.

****Conclusion****

The Union remains committed to ensuring the protection of personal data and to maintaining transparency in its operations, and looks forward to the Authority's guidance on how to proceed in this matter.

****at the workplace****;

*******“in evidence of the will of the Entity in reference to the use of the camera in the field of urban security, it can be noted [from the documentation produced in the records] that the Pact for the implementation of urban security signed on XX between the Municipality of Langhirano and the Prefecture of Parma, produced in the records, also includes the camera subject to complaint, installed at the Command of the Local Police.”*******

The Union, on the other hand, did not exercise the right to be heard before the Authority pursuant to Article 166, paragraph 6, of the Code.

****3. Outcome of the investigative activity. ****

****3.1 The lawfulness of the processing. ****

The regulations regarding the processing of personal data provide that public entities may, in principle, process personal data if the processing is necessary “to comply with a legal obligation to which the data controller is subject” or “for the performance of a task carried out in the public interest or in the exercise of public powers vested in the data controller” (Article 6, paragraph 1, letters c) and e) of the

Regulation and Article 2-ter of the Code).

With specific reference to the use of video surveillance systems by public entities, the Authority had already clarified in the “Provision on video surveillance” (provision of April 8, 2010, web doc no. 1712680) that such entities, “as data controllers [...], may process personal data in compliance with the principle of purpose, pursuing determined, explicit, and legitimate aims [...] for the performance of their institutional functions” (paragraph 5) (see, the “Guidelines 3/2019 on the processing of personal data through video devices” adopted by the European Data Protection Board on January 29, 2020, section 3.2).

In this context, when, as in the present case, the video surveillance cameras are capable of capturing also the personnel who transit or stop in the workplaces, the processing of personal data of workers by the employer may be carried out if it is necessary, in general, for the management of the employment relationship, in compliance with the applicable legal framework, defined by national and EU regulations, by regulations or by collective agreements (Articles 6, paragraph 1, letter c), and 88 of the Regulation).

In this framework, the employer must comply with national rules that “include appropriate and specific measures to safeguard human dignity [...] of the data subjects, particularly regarding the transparency of the processing [...] and monitoring systems at the workplace” (Articles 6, paragraph 2, and 88, paragraph 2, of the Regulation).

By virtue of the reference contained in the Code to the pre-existing national provisions that protect the dignity of individuals in the workplace, with particular reference to possible controls by the employer (Article 114 “Guarantees regarding remote control”), compliance with Article 4 of Law No. 300 of May 20, 1970 (Workers' Statute) constitutes a condition for the lawfulness of the processing (see paragraph 4.1 of the aforementioned “Provision on video surveillance” of April 8, 2010; see also, most recently, FAQ no. 9 of the Authority regarding video surveillance, of December 2020, web doc 9496574 and the numerous decisions of the Authority related to specific cases).

Article 4, paragraph 1, of the Workers' Statute establishes, in fact, that “audiovisual systems and other tools from which the possibility of remote control of workers' activities also derives may be used exclusively for organizational and productive needs, for workplace safety, and for the protection of company assets and may be installed subject to a collective agreement concluded by the unitary trade union representation or by the company trade union representations [...]. In the absence of an agreement, the systems and tools referred to in the first sentence may be installed subject to authorization from the territorial headquarters of the National Labor Inspectorate or, alternatively, [...] from the central headquarters of the National Labor Inspectorate.”

These guarantees of the Workers' Statute also apply in any public and private work context, unless otherwise provided by specific sector provisions (combined provisions of Article 37 of Law 300/1970 and Articles 3, 42, and 51, paragraph 2, of Legislative Decree 165/2001; see also Council of State, ruling no. 708 of July 12, 1990 and Council of State, section V, ruling no. 95 of January 23, 1995, based on which the rules of Law No. 300/1970 apply to public employees in cases where there is a complete lack of regulation regarding the specific case within the internal regulations of the entity). That said, based on the elements acquired and the facts emerged following the investigative activity, it has been established that, starting from February 2016, the Union installed a video surveillance camera at the headquarters of the Local Police located at Via Cascinapiano, 1 - 43013 Langhirano (PR), which “exclusively captures the area of access to the offices and, in long range, the area for parking vehicles owned,” for the purpose of “integrated urban security for the protection of properties owned or managed by the Administration.”

In this regard, it must first be emphasized that the reference made by the Union to the field of “integrated urban security” in relation to the video surveillance camera in question is irrelevant. The sector regulations indeed allow municipalities to install video surveillance systems for the “prevention and contrast of widespread and predatory crime,” provided that a pact is stipulated.

for the implementation of urban security between the Mayor and the competent Prefecture (see Articles 6, paragraphs 7 and 8, of Decree Law February 23, 2009, as well as Articles 4 and 5, paragraph 2, letter a), of Decree Law February 20, 2017, No. 14; cf. provisions December 19, 2024, No. 805, web document No. 10107263; January 11, 2024, No. 5, web document No. 9977020 and

October 20, 2022, No. 341, web document No. 9831369).

This surveillance camera, capturing exclusively an external entrance to the local Police headquarters and part of the service vehicle parking area, cannot be considered instrumental to the protection of urban security, as it cannot ontologically fulfill the task of preventing and combating the specific phenomena of widespread and predatory crime, to which the aforementioned sector regulation refers, which typically occurs in public spaces (cf., most recently, provision April 11, 2024, No. 234, web document No. 10013356). Nor is it relevant, in this regard, that, as stated by the Union in its defense memorandum, the pact for the implementation of urban security signed between the Municipality of Langhirano and the Prefecture of Parma on XX (therefore many years after the installation date of said camera) mentions the camera in question, since it is not suitable for capturing public spaces and fulfilling the purpose of urban security protection (see the Union's note of XX, which states that "the camera [...] exclusively captures the area of access to the offices and, in a wide shot, the parking area for owned vehicles," and Annex 2 to the same, which contains a sample screenshot of the camera's field of view).

According to what has been stated, the actual purpose pursued, namely the "protection of properties owned or managed by the Administration," improperly classified under the scope of urban security, instead falls within the framework of Article 4 of Law 300/1970, pursuant to which, as highlighted, "audiovisual systems and other tools from which the possibility of remote monitoring of workers' activities may also derive can be used exclusively for [...] the protection of company assets," in compliance with the procedures and guarantees provided therein. This provision applies in all places and contexts where workers operate or transit, a circumstance that occurs in the present case (cf., most recently, provision No. 331 of September 16, 2021, web document No. 9719768). In this regard, the Guarantor has, in fact, consistently held that even areas where employees transit or stay - sometimes continuously - (e.g., access to the structure and garages, loading/unloading areas, vehicular and pedestrian entrances), when subjected to video surveillance, are subject to the full application of the regulations regarding personal data protection and those concerning remote monitoring (see, among others, July 30, 2015, No. 455, web document No. 4261028; July 4, 2013, No. 334, web document No. 2577203; April 18, 2013, Nos. 199 and 200, web document No. 2483269; February 9, 2012, No. 56, web document No. 188699; November 17, 2011, No. 434, web document No. 1859558; February 26, 2009, web document No. 1601522).

As emerged during the investigation, the Union installed and activated the surveillance camera subject to the complaint as early as 2016, without having previously undertaken the guarantee procedures provided for in Article 4, paragraph 1, of Law 300/1970, as it neither entered into an agreement with the trade union representatives nor obtained authorization from the competent Territorial Labor Inspectorate. Only following the initiation of the procedure related to the complaint did the Union, in fact, take action to enter into an agreement with the trade union organizations, which was then formally finalized on XX.

In this regard, it is highlighted that the needs for the protection of company assets, also invoked by the Union, cannot alone, based on the regulatory framework outlined above, legitimize the processing of personal data through tools from which the possibility of remote monitoring of workers may also derive, such as the surveillance camera in question, in the absence of the guarantees provided by Article 4, paragraph 1, Law No. 300/1970, which defines, for the reasons outlined so far, the limits, conditions, and prerequisites for the related processing.

On this point, the jurisprudence of the European Court of Human Rights, in the case *Antovic and Mirković v. Montenegro* (Application No. 70838/13 of November 28, 2017), has established that respect for "private life" must also extend to public workplaces (in this case, university classrooms), emphasizing that video surveillance in public workplaces can only be justified in compliance with the guarantees provided by the applicable national law, in the absence of which it constitutes an unlawful interference in the employee's private life, pursuant to Article 8, paragraph 2, of the ECHR.

Therefore, compliance with the aforementioned Article 4, paragraph 1, also by virtue of the reference

to it contained in Article 114 of the Code, constitutes a condition for the lawfulness of the processing of personal data (cf., most recently, regarding the use of video surveillance in workplaces, provisions April 11, 2024, No. 234, web document No. 10013356; November 16, 2023, No. 578, web document No. 9963486; September 16, 2021, No. 331, web document No. 9719768; March 11, 2021, No. 90, web document No. 9582791; March 5, 2020, No. 53, web document No. 9433080; September 19, 2019, No. 167, web document No. 9147290; see, at the European level, the guidelines contained in the cited “Guidelines 3/2019 on the processing of personal data through video devices,” especially paragraph 11, as well as the previous indications of the Article 29 Working Party in “Opinion 2/2017 on the processing of data on...

of the data controller and the purposes of data processing, is not easily accessible for the interested parties, as it is located on a website that may not be readily available or known to them.

3.3. The necessity of a legal basis for data processing.

The processing of personal data must be based on a legal basis as outlined in Article 6 of the Regulation. In the absence of such a legal basis, the processing is deemed unlawful. The Union has not demonstrated that any of the legal bases for processing personal data apply in this case. Specifically, the Union has not provided evidence that the processing was necessary for the performance of a contract, compliance with a legal obligation, protection of vital interests, performance of a task carried out in the public interest, or legitimate interests pursued by the Union or a third party, as required by the Regulation.

3.4. Conclusion.

In light of the above considerations, it is concluded that the use of the surveillance camera and the subsequent processing of personal data were carried out in violation of the applicable data protection laws. The Union must take immediate corrective actions to ensure compliance with the legal requirements regarding the processing of personal data, including the provision of adequate information to the interested parties and the establishment of a valid legal basis for any future data processing activities.

4. Recommendations.

The Union is recommended to:

1. Review and amend its data processing practices to ensure compliance with the Regulation and the national data protection laws.
2. Provide clear and accessible information to all interested parties regarding the purposes of data processing, the legal basis for such processing, and their rights under the applicable data protection laws.
3. Ensure that any future use of surveillance cameras is conducted in accordance with the principles of necessity, proportionality, and transparency, and that appropriate measures are taken to protect the rights of the individuals concerned.

5. Final remarks.

The Union is reminded that non-compliance with data protection laws can result in significant legal consequences, including administrative fines and reputational damage. It is in the best interest of the Union to prioritize data protection and privacy in its operations to foster trust and confidence among its stakeholders.

“last modified XX,” makes a general reference to the processing of personal data carried out by the Union for its own “institutional purposes” and does not, therefore, concern the processing carried out through the aforementioned video surveillance camera for the purposes of workplace safety and the protection of assets referred to in Article 4 of Law 300/1970, which is mentioned in the collective agreement concluded on XX.

The Union has, therefore, failed to provide the interested parties (for example, visitors, users, suppliers, citizens, and other categories of interested parties) with an appropriate extended second-level information notice regarding the processing of personal data.

Also, specifically regarding the processing of personal data of workers through the video device used,

the Union has not demonstrated that it provided them with specific information on the processing of personal data related to the pursuit of the asset protection purpose referred to in Article 4 of Law 300/1970.

It must, therefore, be concluded that the Union acted in a manner not compliant with the “principle of lawfulness, fairness, and transparency” and in violation of Articles 5, paragraph 1, letter a), 12, and 13 of the Regulation.

3.3 The data protection impact assessment.

In implementation of the principle of “accountability” (see Article 5, paragraph 2, and 24 of the Regulation), it is the responsibility of the data controller to assess whether the processing intended to be carried out may present a high risk to the rights and freedoms of natural persons—due to the technologies used and considering the nature, subject matter, context, and purposes pursued—that necessitates a prior data protection impact assessment pursuant to Article 35 of the Regulation (see Recital 90 of the Regulation).

In this case, the processing of personal data of workers employed by the local Police of the Union was carried out, through the video surveillance camera in question, even in the absence of a DPIA.

The copy of the DPIA filed by the Union (see Annex 5 to the note of XX) indeed refers to the “processing of personal data executed with the SDV [, that is, with video surveillance systems,] for the execution of a task in the public interest or related to the exercise of public powers,” also pursuant to the “decree law 14/2017 [which] recognized the importance of video surveillance systems as a tool to prevent and combat widespread and predatory crime.”

The subjects of such processing are identified as “all natural persons who transit in the areas observed by the SDV [... which] concern areas of public passage.” The video surveillance devices considered for this DPIA are as follows: “A. network of fixed cameras dedicated to the surveillance of the territory of the Union; B. network of fixed cameras dedicated to the recognition of vehicle license plates [...]; C. mobile cameras for monitoring waste and judicial police purposes, including camera traps; D. mobile cameras applicable to the uniforms of local police officers (“bodycam”) or on service vehicles (“dashcam”) [...].”

It emerges, therefore, that the DPIA did not specifically consider the processing of personal data of workers carried out through video surveillance systems for the protection of corporate assets pursuant to Article 4, paragraph 1, of Law 300/1970.

Taking into account the indications provided also at the European level on this point, it is noted, instead, that such processing involves specific risks for the rights and freedoms of the interested parties in the workplace context (Article 35 of the Regulation; see provision of November 16, 2023, No. 578, web doc No. 9963486).

This is in consideration of the particular “vulnerability” of the interested parties in the workplace context (see Recital 75 and Article 88 of the Regulation and the “Guidelines concerning the data protection impact assessment and the criteria for determining whether a processing operation 'may present a high risk' under Regulation 2016/679,” WP 248 of April 4, 2017, which explicitly mentions “employees” among the categories of vulnerable subjects) and the fact that in this area the use of systems that involve “systematic monitoring,” understood as “processing used to observe, monitor, or control the interested parties, including data collected through networks” (see criterion No. 3 indicated in the Guidelines, cited, but also see criteria 4 and 7), may present risks in terms of possible monitoring of employees' activities (see Articles 35 and 88, paragraph 2, of the Regulation; see also provision of October 11, 2018, No. 467, web doc No. 9058979, Annex No. 1, which explicitly mentions “processing carried out in the context of the employment relationship using technological systems [...] from which the possibility of remote monitoring of employees' activities arises”; see, among others, provision of December 1, 2022, No. 409, web doc No. 9833530).

The failure to draft a data protection impact assessment concerning video surveillance systems used

in the workplace context has been the subject of recent corrective and sanctioning measures by the Authority (see in particular, provisions of November 16, 2023, Nos. 577 and 578, web doc No. 9963486; see also Newsletter December 15, 2023, web doc No. 9963533).

In this case, the Union has, instead, processed the personal data of workers employed at the local Police Command, through the video surveillance camera in question, in the absence of a preliminary DPIA and, therefore, in violation of Article 35 of the Regulation.

4. Conclusions.

In light of the assessments mentioned above, it is noted that the statements made by the data controller during the investigation – the veracity of which may be subject to accountability under Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the proceedings and are insufficient to permit the archiving of the present proceedings, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply. Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by the Union is noted, for having processed personal data through a video surveillance camera, in violation of Articles 5, paragraph 1, letter a), 6, 12, 13, 35, and 88, paragraph 1, of the Regulation, as well as Article 114 of the Code (in relation to Article 4, paragraph 1, of Law No. 300/1970).

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (the same processing or related treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the most serious violations, relating to Articles 5, paragraph 1, letter a), 6, 12, 13, and 88, paragraph 1, of the Regulation, as well as Article 114 of the Code, are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also recalled by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

5. Corrective measures (Article 58, paragraph 2, letter d), of the Regulation).

Although the Union has stated that it has entered into a collective agreement pursuant to Article 4 of Law No. 300/1970, that it has provided the data subjects with information on data processing, and that it has drafted a Data Protection Impact Assessment (DPIA) also regarding the processing of workers' data, it does not emerge from the documentation on file that it has also modified the sign containing the first-level information, placed near the video surveillance camera in question, by removing the irrelevant references to the processing purposes related to "public safety – urban safety – judicial police – administrative police."

It is therefore necessary to order the Union, pursuant to Article 58, paragraph 2, letter d), of the Regulation, to modify the first-level information on the processing of personal data, removing the reference to the purposes of "public safety – urban safety – judicial police – administrative police" and indicating, instead, the purposes of workplace safety and asset protection referred to in Articles 4, paragraph 1, of Law No. 300/1970 and Article 114 of the Code, expressly indicated in the collective agreement concluded on XX.

Pursuant to Articles 58, paragraph 1, letter a), of the Regulation and Article 157 of the Code, the Union must communicate to this Authority, providing adequately documented feedback, within thirty days from the notification of this provision, the initiatives undertaken in order to implement the above injunction pursuant to the cited Article 58, paragraph 2, letter d), of the Regulation.

6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letters i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Garante, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case," and, in this context, "the College [of the Garante] adopts the injunction order, which also provides for the application of the accessory

administrative sanction of its publication, in whole or in part, on the Garante's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Garante Regulation No. 1/2019). In this regard, considering Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

- the processing was carried out in a manner not compliant with the sector regulations regarding the use of technological tools in the workplace and the specific indications provided over time by the Garante both through general measures and decisions on specific cases, and took place over an extended period (since February 2016), thus involving a large number of subjects, namely the workers and visitors who transited through the offices of the Command (Article 83, paragraph 2, letter a), of the Regulation);

- the images from video surveillance were not used in the disciplinary proceedings initiated against the complainant (Article 83, paragraph 2, letter a), of the Regulation);

- the violation is of a negligent nature (Article 83, paragraph 2, letter b), of the Regulation);

- the processing did not concern special data belonging to the special categories of which...

to Article 9 of the Regulation (see Article 83, paragraph 2, letter g), of the Regulation);

it is considered that, in this specific case, the level of severity of the violation committed by the data controller is high (see European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative monetary penalties pursuant to the GDPR" of May 24, 2023, point 60).

Having stated this, considering that the data controller is a local authority that brings together small municipalities, it is deemed that, for the purposes of quantifying the penalty, the following circumstances should be taken into account:

no previous relevant violations have been committed by the Union (Article 83, paragraph 2, letter e), of the Regulation);

the Union has offered good cooperation with the Authority during the investigation (Article 83, paragraph 2, letter f), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary penalty at €8,000 (eight thousand) for the violation of Articles 5, paragraph 1, letter a), 6, 12, 13, 35, and 88, paragraph 1, of the Regulation, as well as Article 114 of the Code (in relation to Article 4, paragraph 1, of Law No. 300/1970), as an administrative monetary penalty deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

It is also considered that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this chapter containing the injunction order on the Authority's website should proceed. This is in consideration of the fact that the processing carried out involved personal data relating to vulnerable subjects in the workplace (see Recital 75 and Article 88 of the Regulation and "Guidelines on Data Protection Impact Assessment and the criteria for determining whether processing 'may present a high risk' under Regulation 2016/679", WP 248 of April 4, 2017).

Finally, it is noted that the conditions of Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE, THE AUTHORITY

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Unione Montana Appennino Parma Est for violation of Articles 5, paragraph 1, letter a), 6, 12, 13, 35, and 88, paragraph 1, of the Regulation, as well as Article 114 of the Code (in relation to Article 4, paragraph 1, of Law No. 300/1970), as stated in the reasoning;

ORDERS

the Unione Montana Appennino Parma Est, represented by the legal representative pro tempore, with registered office at Piazza Giacomo Ferrari, 5 - 43013 Langhirano (PR), Tax Code 02706560345, to pay the sum of €8,000 (eight thousand) as an administrative monetary penalty for the violations

indicated in the reasoning. It is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed penalty;

COMMANDS

- the aforementioned Union, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €8,000 (eight thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement acts pursuant to Article 27 of Law No. 689/1981;
- the aforementioned Union, pursuant to Article 58, paragraph 2, letter d), of the Regulation, to modify the first-level information on the processing of personal data, removing the reference to the purposes of “public safety – urban safety – judicial police – administrative police” and indicating, instead, the purposes of workplace safety and protection of assets as per Articles 4, paragraph 1, of Law 300/1970 and Article 114 of the Code, expressly indicated in the collective agreement concluded on XX;
- the aforementioned Union, pursuant to Article 157 of the Code, to communicate to the Authority, within 30 days from the notification of this provision, the initiatives undertaken to implement the imposed measures; any failure to comply with the injunction may result in the application of the administrative monetary penalty provided for by Article 83, paragraph 5, of the Regulation;

DISPOSES

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of the injunction order on the Authority's website;
- pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website;
- pursuant to Article 17 of the Authority's Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, April 10, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE ACTING SECRETARY GENERAL

Filippi